

Tentative Rulings

**Judge Matthew A. Siroka
Department G**

REVIEW BEFORE OBTAINING THE TENTATIVE RULING:

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

Appearances may be made in person or via Zoom unless otherwise ordered. Parties are responsible for ensuring adequate connectivity and availability; the Court may proceed in a party's absence if technical issues arise. Parties requesting oral argument must appear in person or remotely by Zoom (video or telephone) in accordance with court website guidelines. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/7/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL 2002346

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: SHAWN SIMPSON

and

RESPONDENT: MARY DUMONT

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – MODIFY CHILD CUSTODY

RULING

Appearances required.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/7/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002387

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: ROXANNE COHN

and

RESPONDENT: STANLEY COHN

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – 1) SPOUSAL SUPPORT 2)
TRIAL READINESS CONFERENCE

RULING

This matter is before the Court on Petitioner Roxane Cohn (Wife)'s May 5, 2026, Request for Order (RFO) seeking \$4,500 in spousal support. Wife asserts she was a stay-at-home spouse during their 40-year marriage. Wife states there are expenses in Wife's name that Respondent (Husband) is not paying in a timely fashion, so she needs support from Husband to pay them. Wife's May 5, 2026, Income and Expense Declaration reports zero income from wages, \$1,471 in Social Security Retirement income and \$21.67 in monthly dividends and interest.

Husband's Responsive Declaration filed June 16, 2026, opposes Wife's request. Husband reports \$8,333 monthly average W2 income, for which he provided no paycheck stubs. He reports \$3,635 a month in Social Security Retirement income and \$159.03 (average \$636.12/month) in rental property income. Husband did not provide a Profit and Loss Statement. Husband claims \$34,641 in business expenses, averaging \$2,886.75 a month in 2025. Husband did not provide information regarding these claimed business expenses.

Wife's June 29, 2026, Reply Declaration includes support calculations, using \$150,000 W2 income for Husband, based on her attorney's assertion of Husband's five-year average. Wife's calculations disregard Husband's rental income and his social security income, uses the Alameda County formula, and reverses the income inputs for Husband and Wife.

Neither Wife nor Husband submitted current financial documents as required by MCR Fam 7.13. There are no paycheck stubs, no profit and loss statements, no tax returns, no information for his non-reimbursed business expenses. It is also unclear whether the parties' social security income is before deductions for their health insurance premiums.

The RFO and trial readiness conference are continued to August 18, 2026, at 9:00 AM in Department G for further hearing. By July 27, 2026, Wife is ordered to file/lodge and serve her Social Security statement, and her last two years of tax returns, as well as an updated support

calculation. By August 7, 2026, Husband ordered to file/lodge and serve his last three paystubs, his last two years of tax returns, his Social Security Statement, and a profit and loss statement for January 2026 through July 2026 for his rental property. Husband is referred to the Legal Self-Help office to assist in preparing a proposed calculation.

Counsel for Mother is ordered to prepare the formal Findings and Order After Hearing.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/7/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002775

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: SOPHIA ZHARKOVA

and

RESPONDENT: BORIS ZHARKOV

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CUSTODY/CHILD SUPPORT;
PROPERTY CONTROL; SPOUSAL SUPPORT

RULING

Petitioner Sophia Zharkova (Mother) filed a request for order (RFO) on May 4, 2026, requesting custody orders regarding the parties' children, Jacob (DOB: 05/17/2013) and Gregory (DOB: 03/28/2016), child and spousal support and control of certain property. Respondent Boris Zharkov (Father) was served with the petition of dissolution filed April 13, 2026, but there is no proof of service of the RFO. The parties were referred to Family Court Services (FCS) but neither attended the mediation.

Mother is ORDERED to contact the Legal Self-Help Center at 3501 Civic Center Drive, Hall of Justice, Room C-44 San Rafael, CA 94903 or (415) 444-7130 for assistance in serving the RFO. The matter is continued for further hearing and Case Progress Conference on August 18, 2026 at 9:00 am in Department G.

As authorized by CRC Rule 5.125, the Court shall prepare the formal Findings and Order After Hearing.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/7/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002781

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: ZOE VARINA MAXON

and

RESPONDENT: ALEXANDER JAMES
HENRY TRAUGOTT

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – VISITATION

RULING

Petitioner Zoe Maxon (Mother) filed an RFO seeking a change in the timeshare of the parties' minor child Rayner (DOB 3/3/22). The parties reached some agreements in mediation with Family Court Services (FCS) which the Court is inclined to accept. FCS also recommended transitioning Rayner to a 2/2/5 schedule, despite the parent's misgivings. The Court is considering adopting the FCS recommendation and ordering a transition to 2/2/5 but would like input from the parties.

Appearances required. Counsel for Mother will prepare the formal Findings and Order After Hearing.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/7/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002883

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: JACOB STEVENS
THOMPSON

and

RESPONDENT: KATHERINE POHL

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

Petitioner Jacob Stevens Thompson (Father) filed a request for order (RFO) on May 22, 2026, requesting custody orders for the three minor children Keavy (DOB: 06/05/2009), Khloe (DOB: 12/07/2010), Leif (DOB: 09/28/2012) he shares with Respondent Katherine Pohl (Mother). Mother was served with the RFO and parentage petition on June 9, 2026. Father submitted a proposed parenting plan and requests joint legal custody as to all three children and joint physical custody of Khloe and Leif and sole physical custody of Keavy.

The parents were referred to Family Court Services (FCS) and reached a full agreement in the session. Mother signed the agreement, but Father did not. Father requested some minor modifications, but Mother did not agree.

The Court finds it is in the best interests of the children to adopt the FCS recommendation as modified herein.

1. The parents shall share joint legal custody of all three children. The parents shall share in the responsibility and confer in good faith on matters concerning the health, education, and welfare of the children. Each parent shall have access to the children's school, medical, mental health, and dental records and the right to consult with professionals who are providing services to the children.
2. The parents shall share joint physical custody of all three children.
3. Khloe and Leif shall continue to live with both parents on a "week on/week off" basis with the exchanges occurring on a school Monday morning (or Monday at 6:00 p.m. if school is not in session).

4. Keavy shall continue to live primarily at Father's and shall be with Mother as desired by Keavy and as arranged and agreed upon by Katie and Keavy.
5. Any changes to the schedule, or any additional time for any of the children to be with either parent shall occur as mutually agreed upon.
6. All holidays and breaks (except for Summer, discussed separately) shall continue per the regular "week on/week off" schedule with the following exceptions:
 - a. **Thanksgiving:** The children shall be with Mother for Thanksgiving Day in the even years and with Father in the odd years.
 - b. **Christmas:** The children shall be with Father for Christmas Eve and Christmas morning every year and with Mother for Christmas Day every year.
 - c. **Winter Break (February) and Spring Break:** If the regular "week on/week off" schedule results in one parent having both of these breaks, then the parents shall agree on how to divide them equally that year.

Any changes to this schedule shall occur as mutually agreed upon in writing by the parents.

7. The parents shall engage in peaceful contact only in the presence of the children.
8. Neither parent shall make any disparaging comments about the other parent (or the other parent's partner) in the presence of the children or allow others to do so.
9. Both parents shall ensure that the children are kept out of adult conflicts and issues.
10. Neither parent shall drink in excess in the presence of the children or allow others to do so.
11. Both parents shall use Our Family Wizard to communicate, unless otherwise agreed upon.
12. The receiving parent shall have 72 hours to respond to any request, except in an actual emergency. If the request is to modify an exchange or time share in the next 48 hours, the parties may communicate outside of OFW.
13. Stepparents may not be permitted to use OFW except in case of emergency.
14. The parents' and children's birthdays shall also be on the regular schedule as the days fall.
15. **Summer:** The parties shall work out the schedule for summer, including camps, no later than May 1st of each year. Each party shall have the same number of full weeks.
16. Each parent shall be entitled to designate up to two (2) weeks of uninterrupted vacation time with the children. Vacation time shall be scheduled with advance written notice to the other parent. In the event of conflict, Father's selections in even years, and Mother's selections in odd years shall control, provided timely notice was given.

17. Neither party shall tell children about any proposed schedule change or plans unless there is an agreement in writing confirming the modification on OFW.

Counsel for Father shall prepare the formal Findings and Order After Hearing.